HOSPITAL ELECTRONIC HEALTH RECORDS & AI DIAGNOSTICS AGREEMENT

This Healthcare Data Processing & Cloud Diagnostics Agreement ("Agreement") is entered into as of November 15, 2026, by and between:
1. MediCloud AI Diagnostics Private Limited ("Data Processor" or "Vendor"), having its registered facility at Sector 62, Noida, Uttar Pradesh, India; and
2. Apex Multi-Speciality Hospitals & Research Institute ("Data Fiduciary" or "Hospital"), having its principal healthcare campus at Connaught Place, New Delhi, India.

RECITALS & APPLICABLE STATUTORY MANDATES
WHEREAS, Hospital operates multi-speciality tertiary care centers and maintains confidential Digital Personal Data including Electronic Health Records (EHR), patient clinical histories, diagnostic imaging (MRI/CT), pathology reports, and genomic data;
WHEREAS, Hospital is a designated Data Fiduciary governed by India's Digital Personal Data Protection Act (DPDP Act, 2023) and National Medical Commission (NMC) confidentiality mandates;
WHEREAS, Vendor provides AI-assisted diagnostic screening software and cloud medical record management.

SECTION 1: CLINICAL SERVICES & MEDICAL IMAGE PROCESSING
1.1 Tele-Radiology & EHR Processing. Vendor will host Hospital's radiology feeds and provide automated preliminary screening with 99.8% server availability.
1.2 Medical Emergency Support. Vendor's diagnostic assistance portal is available 24/7/365 for emergency trauma evaluations.

SECTION 2: TERM AND CLINICAL TERMINATION
2.1 Term. This Agreement shall remain in effect for three (3) years from the Effective Date.
2.2 Emergency Termination for Convenience. Hospital acknowledges that Vendor may terminate cloud hosting services without cause upon providing five (5) days prior written notice. Hospital agrees that upon such termination, patient diagnostic records may be permanently quarantined within forty-eight (48) hours.
2.3 Statutory Revocation. Hospital reserves the right to terminate immediately if Vendor suffers an unnotified patient data breach.

SECTION 3: PATIENT HEALTH DATA PRIVACY & MACHINE LEARNING RIGHTS

3.1 Ownership of Hospital Data. Hospital retains legal title to raw patient clinical data under the DPDP Act 2023.

3.2 Patient Data License & Model Training (RESTRICTED CLAUSE). Hospital hereby grants Vendor an irrevocable, perpetual, worldwide, transferable license to de-identify, use, and process all patient Electronic Health Records, diagnostic scans, and clinical notes to train Vendor's internal commercial foundation AI models and commercial diagnostics algorithms.

3.3 Cross-Border Health Data Routing. Hospital consents that encrypted diagnostic telemetry may be routed and processed through secondary cloud clusters located outside India without prior Data Protection Board approval.

SECTION 4: INDEMNIFICATION & HOSPITAL STATUTORY LIABILITIES

4.1 Hospital Indemnification. Hospital agrees to defend, indemnify, and hold harmless Vendor from any regulatory penalties, patient lawsuits, or Data Protection Board of India inquiries resulting from inaccurate diagnostic outputs or alleged violations of DPDP Act consent requirements.

4.2 Vendor Disclaimer. Vendor provides its diagnostic AI on an "as-is" basis and disclaims all liability for clinical misdiagnoses or adverse patient medical outcomes.

SECTION 5: LIMITATION OF MEDICAL LIABILITY (CRITICAL EXPOSURE)

5.1 Unlimited Hospital Exposure. Hospital's liability under this Agreement for any alleged breach of data delivery or payment default shall be unlimited and without aggregate dollar ceiling.

5.2 Vendor Ceiling. Vendor's aggregate financial liability to Hospital for all claims including clinical downtime, system outages, or data leakage shall not exceed fifty thousand Indian Rupees (INR 50,000).

SECTION 6: SECURITY INCIDENT & STATUTORY BREACH REPORTING

6.1 Breach Notification. In the event of a confirmed cybersecurity compromise or unauthorized access to patient health data, Vendor shall notify Hospital within thirty (30) business days following forensic completion.

6.2 Hospital Statutory Duty. Hospital acknowledges that Section 8(6) of India's DPDP Act requires prompt notification to the Data Protection Board and affected Data Principals.

SECTION 7: MEDICAL STAFF RESTRICTIVE COVENANTS

7.1 Restrictive Clinical Covenant. For a period of twenty-four (24) months following termination, Hospital agrees that its attending radiologists, oncologists, and data administrators shall not consult with or advise any other competing digital health AI vendor in India.

SECTION 8: GOVERNING LAW & JURISDICTION

8.1 Governing Law. This Agreement shall be governed by and construed in accordance with the substantive laws of India, subject to DPDP Act 2023 rules.

8.2 Exclusive Jurisdiction. The parties agree that the competent courts situated in New Delhi, India shall have exclusive jurisdiction over all disputes arising hereunder.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement by their authorized fiduciaries.

For Apex Multi-Speciality Hospitals: For MediCloud AI Diagnostics:
Dr. R. K. Sharma, Medical Director V. N. Nair, Chief Technology Officer